

		as a basis for fee recovery but this section contemplates an award of fees as sanctions, rather than as a matter of costs, so it does not provide a valid basis for including a fee award in a section 1030 undertaking. Moving Defendants also point to Civil Code section 3426.4, which allows recovery of fees as costs by a prevailing party “if a claim of misappropriation is made in bad faith...” For the purposes of section 3426.4, to establish a claim is made in bad faith, there must be a showing of “ (1) objective speciousness of the claim, and (2) subjective bad faith in bringing or maintaining the action, i.e., for an improper purpose.” (<i>Cypress Semiconductor Corp. v. Maxim Integrated Products, Inc.</i> (2015) 236 Cal.App.4th 243, 260.) There is no evidence to support a finding that Plaintiff’s trade secret causes of action are brought in bad faith. Moving Defendants also seek to assert that they will incur \$55,000 in costs defending this action. Moving Defendants’ declaration, however, contains nothing more than assertions of this \$55,000 figure without any factual support. Merely listing estimated categories of costs does not set forth “the nature and amount of the costs and attorney's fees the defendant has incurred and expects to incur.” (Code Civ. Proc., §1030, subd. (b).) Plaintiff shall provide notice of this ruling.
2	Atiyeh vs. Zhu 2026-01573491	Motion – Other <i>Vacated. See minute order dated 9/8/26.</i>
3	Incentax, LLC vs. Allied West Paper Corporation 2025-01485830	Motion for Summary Judgment and/or Adjudication No tentative.
4	Kiani vs. Masimo Corporation 2024-01426785	Off calendar. <i>Vacated. See minute order dated 8/28/26.</i>
5	Kim vs. Hong 2025-01533601	Demurrer to Amended Complaint All parties and counsel are admonished that the meet and confer efforts with respect to this demurrer do not comply with California Code of Civil Procedure section 430.41, subdivision (a). Parties “shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to

		demurrer.” The court notes that moving-party’s attorney’s 3-19-26 meet and confer letter only demands dismissal or payment of monetary sanctions but does not invite plaintiff to discuss the deficiencies “in person, by telephone, or by video conference.” (See exhibits to ROA 41.) Had moving-party done so, then a declaration attesting to plaintiff’s failure to respond would comply with Code of Civil Procedure section 430.41, subdivision (a)(3)(B) [“That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith”].) Moving-party’s meet and confer letter alone is insufficient. Despite the insufficient meet and confer efforts, the court addresses the merits of the demurrer. Defendant Wan P. Hong aka John Hong’s demurrer to plaintiff Jay W. Kim’s First Amended Complaint [FAC] is SUSTAINED, with leave to amend, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Defendant’s demurrer to plaintiff’s original Complaint was sustained with leave to amend, because the originally pled fraud claim was time-barred, and the original Complaint failed to sufficiently allege delayed discovery. (See ROA 1 [original Complaint], ROA 22 [2-22-26 minute order].) Rather than redrafting the entire Complaint to incorporate plaintiff’s prior fraud claim with allegations of delayed discovery in a single new pleading, plaintiff’s FAC only addresses delayed discovery, but does not allege the fraud claim alleged in the original Complaint [i.e. misrepresentation of ability to repair plaintiff’s mold]. As currently pled, the FAC only alleges defendant offered fraudulent and/or perjurious testimony in a 2020 small claims action. (FAC, second page.) This is insufficient to state a fraud claim on its own, as there are no allegations as to the substance of the alleged false testimony, that plaintiff relied on any false testimony to his detriment, or any resulting damages therefrom. (See <i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 [elements of fraud cause of action are: (1) a misrepresentation by defendant; (2) defendant’s knowledge of its falsity; (3) intent to defraud; (4) plaintiff’s justifiable reliance; and (5) resulting damages]; see also <i>id.</i> at 645 [fraud claims must be pled with particularity, including facts showing “how, when, where, to whom and by what means the representations were tendered”].)
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		Further, there is no civil remedy for false testimony, outside of a motion for new trial in the original action, and/or appeal of the original judgment. (<i>Kachig v. Boothe</i> (1971) 22 Cal.App.3d 626, 633 [“The trial is his opportunity for making the truth appear ... [i]f, unfortunately, he fails, being overborne, by perjured testimony, and if he likewise fails to show the injustice that has been done him, on motion for a new trial, and the judgment is affirmed on appeal, he is without remedy”]; <i>Kachig v. Boothe</i> (1971) 22 Cal.App.3d 626, 633, emphasis added; see also <i>Jacob B. v. County of Shasta</i> (2007) 40 Cal.4th 948, 955–956 [Civ. Code, § 47, subd. (b) litigation privilege “is absolute and applies regardless of malice ... Indeed, the privilege extends even to civil actions based on perjury”]; <i>Cedars-Sinai Medical Center v. Superior Court</i> (1998) 18 Cal.4th 1, 9 [“we have held that there is no civil remedy in damages against a witness who commits perjury when testifying”].) Moving party also argues that plaintiff’s current claims are barred by res judicata. However, this does not appear on the face of the FAC, and raises arguments outside the FAC without any request for judicial notice, which is improper on demurrer. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 [demurrer lies only to challenge defects appearing on the face of the pleading, or from matters outside the pleading of which judicial notice has been properly requested].) Plaintiff is granted 20 days to file a Second Amended Complaint, which shall address any previously pled claims, together with any necessary allegations showing delayed discovery, in the same pleading. (See Code Civ. Proc., § 471.5, subd. (a) [“If the complaint is amended ... the court may, in its discretion, require the complaint as amended to be filed”]; Cal. Rules of Court, rule 3.1324, subd. (c) [“The court may ... require the filing of the entire previous pleading with the approved amendments incorporated into it”].) Case Management Conference continued to February 26, 2027 at 8:30 a.m. Moving party shall give notice.
6	Maaranu vs. Ponder 2025-01505635	Demurrer to Amended Complaint (2) <i>Vacated. See minute order dated 9/8/26.</i>